

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 12  
Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen  
191 North First Street, San Jose, CA 95113  
Telephone: (408) 882-2230

**DATE: 05/20/2026 TIME: 9:00 A.M. and 9:01 A.M.**

|                         |            |                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|-------------------------|------------|------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">LINE 3</a>  |            |                                                            | <p>MOTION: ADMISSIONS DEEMED ADMITTED &amp; REQUEST FOR SANCTIONS</p> <p>Defendant Pineda’s motion for order that truth of the matters specified in request for admission be deemed admitted. Notice is proper. The Court has received no opposition Plaintiff.</p> <p>“[T]he failure to file an opposition creates an inference that the motion is meritorious.” (<i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4<sup>th</sup> 1403, 1410.)</p> <p>Good cause appearing, the motion is GRANTED. The truth of all specified facts in the Request for Admissions, Set One, propounded by Defendant Pineda on Plaintiff on August 18, 2025 shall be deemed admitted.</p> <p>Request for monetary sanctions is appropriate. The court in its discretion will have the sanctions run concurrent with the sanctions imposed on parallel motion to compel answers.</p> <p>Defendant to prepare the final order that repeats the admissions to be admitted verbatim, accompanied by the necessary Forms EFS-020, within 7 days of the date of the hearing.</p> |
| <a href="#">LINE 4</a>  | 25CV460473 | Taneisha Merritt-Rojas<br>v.<br>O’Connor Hospital et<br>al | DEMURRER<br><br>Please scroll down to Lines 4 & 5                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <a href="#">LINE 5</a>  |            |                                                            | MOTION to STRIKE<br><br>Please scroll down to Lines 4 & 5                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| <a href="#">LINE 6</a>  |            |                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <a href="#">LINE 7</a>  |            |                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <a href="#">LINE 8</a>  |            |                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <a href="#">LINE 9</a>  |            |                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <a href="#">LINE 10</a> |            |                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <a href="#">LINE 11</a> |            |                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <a href="#">LINE 12</a> |            |                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |

## **Calendar Line 1**

Calendar Line No. 1

**Case Name:** *Isiah Javier Telly v. Martha Sanchez, et al.*

**Case No.:** 24-CV-431273

### **Factual and Procedural Background**

This is an action for motor vehicle and negligence brought by plaintiff Isiah Javier Telly (“Plaintiff”) against defendants Martha Sanchez (“Sanchez”) and Edgar Miguel Garcia (“Garcia”) (collectively, “Defendants”).

According to the complaint, on March 8, 2022, at Bolero Drive and Harmony Lane in San Jose, California, Defendants’ vehicle collided with Plaintiff, a pedestrian, causing him to suffer personal injuries. (Complaint at GN-1.) Plaintiff alleges Defendants negligently and/or carelessly owned, operated, entrusted, leased and/or maneuvered the subject vehicle. (Ibid.) As a result of the collision, Plaintiff also sustained severe and permanent emotional distress. (Id. at p. 6.)

On February 16, 2024, Plaintiff filed a Judicial Council Form Complaint against Defendants alleging causes of action for motor vehicle, negligence, and negligent infliction of emotional distress.

On September 10, 2024, Defendants filed a motion for summary judgment to the complaint. The motion was heard and submitted on December 17, 2024. Thereafter, the court (Hon. Monahan) issued an order denying the motion for summary judgment.

On May 2, 2025, Liberty Mutual Fire Insurance Company (“Liberty”) filed a motion for leave to intervene in this action. The motion was set for hearing on June 27, 2025. The court (Hon. Monahan) granted the motion and Liberty filed its answer-in-intervention to the complaint on July 1, 2025.

On November 12, 2025, Liberty filed the motion presently before the court, a motion for summary judgment to the complaint. Liberty filed a request for judicial notice in conjunction with the motion. Plaintiff filed written opposition. Liberty filed reply papers and evidentiary objections.

A trial setting conference is scheduled for June 10, 2026.

### **Request for Judicial Notice**

“Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action without requiring formal proof of the matter.” (*Poseidon Development, Inc. v. Woodland Lane Estates, LLC* (2007) 152 Cal.App.4th 1106, 1117.)

In support, Liberty requests judicial notice of the following:

- Plaintiff's complaint;
- Defendants' Motion for Summary Judgment in this action;
- Plaintiff's Opposition to Defendants' Motion for Summary Judgment;
- Order Denying Defendants' Motion for Summary Judgment;
- Liberty's Motion for Leave to Intervene in this action;
- Order Granting Liberty's Motion for Leave to Intervene;
- Liberty's Answer-in-Intervention filed in this action;
- Motion for Summary Judgment filed by Defendant and Cross-Complainant Raed Hodroj in *CSAA Ins. Exch. V. Hodroj (Hodroj)*, Santa Cruz Superior Court Case Number 17CV00467;
- Motion for Summary Judgment filed by Plaintiff and Cross-Defendant CSAA Insurance Exchange in *Hodroj*;
- Separate Statement of Undisputed Material Facts filed by Plaintiff and Cross-Defendant CSAA Insurance Exchange in *Hodroj*. (See Request for Judicial Notice ["RJN"] at Exs. 1-10.)

The court declines to take judicial notice of the complaint and Liberty's Answer-in-Intervention as the court must necessarily consider allegations of the pleadings on a motion for summary judgment. (See *Scolinos v. Kolts* (1995) 37 Cal.App.4th 635, 640 ["On a motion for summary judgment, the issues are framed by the pleadings since it is those allegations to which the motion must respond."]; see also *Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [a court need not take judicial notice of a matter unless it "is necessary, helpful, or relevant"].) The court takes judicial notice of the remaining exhibits under Evidence Code section 452, subdivision (d) as they constitute records of the superior court. (See *Miller v. Super. Ct.* (2002) 101 Cal.App.4th 728, 734, fn. 2 [appellate court took judicial notice of superior court files under Evidence Code sections 452, subdivision (d) and 459]; see also *Stepan v. Garcia* (1974) 43 Cal.App.3d 497, 500 [the court may take judicial notice of its own file].)

Accordingly, the request for judicial notice as to Exhibits 1 and 7 is DENIED. The request for judicial notice as to Exhibits 2-6 and 8-10 is GRANTED.

### **Evidentiary Objections**

"In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court..." (Code Civ. Proc., § 437c, subd. (c).)

"In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the